

**PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR AUGUST 13, 2026, AT 8:30 A.M.**

3. M-CV-0096651 THE BEST SERVICE v. EATON, CORRINE

Defendant's Motion to Set Aside Entry of Default

Defendant moves the court to set aside the entry of default entered against her on May 6, 2026. (Code Civ. Proc., §§ 473, 473.5.) However, defendant has provided insufficient evidence that the failure to timely respond was due to her mistake, surprise, inadvertence, or excusable neglect. Accordingly, defendant's motion is denied without prejudice.

4. M-CV-0097654 VINEYARD GATE APTS. v. DAVIS, MAHAGANY

This tentative ruling is issued by the **Honorable Albert A. Erkel**. If oral argument is timely requested, it will be heard on **Wednesday, August 19, 2026, at 1:00 p.m. in Department 4.**

Motion to Set Aside Judgment

On July 15, 2026, the court held a bench trial on plaintiff's unlawful detainer complaint. Plaintiff appeared whereas defendant did not. The court entered judgment in favor of plaintiff and against defendant.

The same day, defendant filed an ex parte application for stay pending hearing on motion to set aside judgment that indicated defendant did not receive the court's notice of trial because it was sent to apartment number #110 but defendant resides at apartment number #1100. The court granted a stay and set a hearing on the motion to set aside judgment for July 30, 2026. The court's order also provided

Defendant shall file and serve a copy of the motion to set aside judgment and this order on plaintiff or, if plaintiff is represented by counsel, then on plaintiff's counsel by no later than July 16, 2026 at 5:00 p.m. Service may be effected by personal service, emailed service, or by facsimile. Proof of service shall be filed with the court no later than July 20, 2026. Failure to timely serve and timely file a proof of service with the court is a sufficient basis for the court to deny defendant's motion

(Order on Ex Parte Application for Stay of Execution, p. 2.)

On 30, 2026, the court again continued the motion for defendant to serve plaintiff's counsel of record with the motion to set aside judgment, court's order on ex parte application for stay of execution, and the court's July 30, 2026, tentative ruling.